

HOUSE BILL 2143

By Glynn

AN ACT to amend Tennessee Code Annotated, Title 4,
Chapter 25 and Title 58, Chapter 3, relative to
veterans services.

BE IT ENACTED BY THE GENERAL ASSEMBLY OF THE STATE OF TENNESSEE:

SECTION 1. Tennessee Code Annotated, Section 58-3-109, is amended by adding the following as new subsections:

(c) The county legislative bodies and municipal governing bodies creating the local veterans service offices shall choose the persons hired to provide veterans services, subject to guidance provided by the department of veterans services. Employees of a local veterans service office who served in the armed forces are known as "county veterans service officers (CVSOs)," and those who did not serve are known as "county veterans service representatives (CVSRs)." Counties with a population greater than seventy-five thousand (75,000), according to the 2020 federal census or a subsequent federal census, may hire administrative assistants for clerical duties who are not required to hold an accreditation from the United States department of veterans affairs. Once a CVSO or CVSR receives accreditation from the United States department of veterans affairs, the CVSO or CVSR will hold office if CVSO or CVSR remains fully qualified, unless terminated for misconduct.

(d) The appointing authority for each local veterans service office shall ensure that each office is staffed by at least one (1) CVSO and that staffing of the office is in accordance with the ratio of CVSOs to CVSRs, as established by the department of veterans services by rule.

SECTION 2. Tennessee Code Annotated, Section 58-3-111, is amended by adding the following as new subsections:

(e) A local veterans service office is a department of the governing body that created the office, and the senior CVSO is its departmental head. In the case of a local veterans service office created by two (2) or more political subdivisions, the office is a department under the political subdivision providing a majority of the office funding. If the funding is equally divided and the political subdivisions are unable to agree on the organizational placement of the office then the commissioner of veterans services shall decide under which political subdivision the office is placed.

(f) All CVSOs, CVSRs, and administrative assistants must have a background check. Veterans, especially combat veterans, should be given hiring preference for positions requiring accreditation by the United States department of veterans affairs and consideration must be given to those with administrative, human resources, and computer education and experience backgrounds. Combat service must be verified via separation or other official military documents.

(g) In addition to the training and accreditation required by subsection (d), all CVSOs and CVSRs shall attain accreditation by the United States department of veterans affairs within six (6) months from the date of appointment. Any CVSO or CVSR who does not receive United States department of veterans affairs accreditation within six (6) months of appointment must be removed from office by the governing body of the political subdivision creating the veterans service office at which the CVSO or CVSR is employed.

(h) CVSOs and CVSRs shall complete all annual and recurring training required by the United States department of veterans affairs and department of veterans services to maintain all required accreditations and meet claims filing performance standards

established by the department. Failure to do so can result in removal from office within thirty (30) days after notification by the commissioner to the local governing body of the political subdivision in which the employing veterans service office is located.

(i) Local governing bodies that create a local veterans service office are encouraged to maintain enough CVSOs, CVSRs, and administrative assistants to support the size of their respective veteran populations, as well as provide adequate office space and administrative support. When three (3) or more CVSOs or CVSRs are employed by a local governing body, a CVSO must be designated as the director of veterans services and be paid an amount corresponding with other departmental heads of similarly sized departments of the local governing body or the state recommended wage, whichever is greater. For offices with one (1) CVSO, the CVSO is designated the director.

(j) The commissioner of veterans services shall publish guidance on an annual basis on a recommended number of part-time and full-time CVSOs and CVSRs per political subdivision. The commissioner shall establish a required minimum salary rate for CVSOs and CVSRs as well as a recommended number of paid hours, including hours designated for required training and continuing education. The recommended salary rates may include a lower probationary rate to be paid until completion of all required state and federal training for accreditation.

(k) Upon application by a local governing body, the department of veterans services shall provide a salary grant for the purpose of hiring new CVSOs and CVSRs to meet the minimum state staffing requirements at the state-mandated salary rate. The department may also provide additional grants to cover the costs to train and maintain qualified CVSOs and CVSRs, including costs for state-mandated annual and recurring certifications and costs to pay the state-mandated minimum salary. The commissioner

of veterans services may create annual bonuses for CVSOs and CVSRs who meet performance metrics prescribed by the commissioner.

(l) The department of veterans services may enter into agreements with nationally chartered veterans services organizations to provide for cross accreditation and to provide initial and recurrent service officer accreditation training. The department may grant accredited representatives of those organizations access to department data systems for the purpose of using common claims filing software. The department may also provide funds to nationally chartered veterans service organizations for the purpose of promoting the availability of veterans services.

(m) All state funding provided to local veterans service offices must be used exclusively for salaries, benefits, supplies, and training expenses and must not be used for any other purpose by the local governing body. Local veterans service office budgets must be published as a separate item within the political subdivision's annual budget.

SECTION 3. This act takes effect upon becoming a law, the public welfare requiring it.